TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
FEBRUARY 26, 2018
MINUTES

Present: Joseph Belton, Chair, David Rubin, Barry Wolff, Bobby Carrier, Stephen Wood, Stephen Duke, Glyn Cowden.
Staff: Michael Robertson, Lynnette Lynes

Mr. Belton called the meeting to order at 6:00 pm and reviewed the procedures with the public.

1. Approval of Minutes

- *Mr. Wolff moved for approval of the minutes. Mr. Cowden seconded the motion. All in favor.*

- *Mr. Wolff moved for approval of the agenda. Mr. Cowden seconded the motion. All in favor.*

2. Public Comment & General Correspondence

- Mr. Robertson answered that no correspondence was received.

- Mr. Belton administered the oath to those speaking.

There being no comments, Mr. Belton continued with the agenda.

3. Business

A. V-4-18, 1247 Ben Sawyer Blvd., TMS 532-07-00-020, Appeal from the strict application of §156.171 Schedule of off-street parking space requirements and §156.007 DEFINITIONS, RESTAURANT, FAST FOOD to allow the existing twelve off-street parking spaces instead of sixteen off-street parking spaces.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Ms. Annie Vola and Mr. Dan Vola, applicant, reviewed the request with the Board.

Mr. Wolff asked about the square footage of the building and if the entire business operation encompasses only the entire first floor (805 square feet). Ms. Vola answered in the affirmative and stated that the second floor would be used for storage and offices.

Mr. Carrier asked if the square footage has been verified. Mr. Robertson answered that the square footage appears to be accurate. He stated that they would not meet the next threshold for additional parking. Ms. Vola stated that their business was similar to the previous business and was not aware that parking was an issue.

Ms. Erin Ledford stated that she is a family friend of the Vola's. She stated that she likes the variety of businesses in Mount Pleasant. She suggested that this would be a good addition to the area. She suggested that the parking would not be an issue because the patrons would mainly be "in and out" and would have an extended stay at the business. She also suggested that the business lends itself to pedestrian traffic. She stated that the property will be well-maintained and utilized and would be an asset to the community.

Mr. Gary Santos, 1690 Greystone Blvd, stated that he has great memories on stopping for donuts on the way to the Moultrie School games. He suggested that the property is a "perfect spot" for pedestrian traffic, beach traffic, etc. He suggested that this is a good opportunity for the Town.

There being no further comments, Mr. Belton closed the public comment.

Mr. Belton asked if the square footage on the bottom floor can only be counted. Mr. Robertson answered in the negative and stated that the ordinance requires gross square footage to be counted toward the parking requirement.

Mr. Wolff asked if the variance could be conditioned for use of the second floor. Mr. Robertson answered that conditions can be placed on a variance. Mr. Wolff asked if the second floor is not used, could the variance be granted. Mr. Robertson answered that it would need to be clearly specified. Mr. Wolff asked if the variance was conditioned that the upstairs space could only be used for storage, office and non-retail use would it be amenable for the owner. Ms. Vola answered in the affirmative.

Mr. Cowden asked if the property was surveyed to determine if 16 spaces can be accomplished on the site. Mr. Robertson answered that this was the reason for the variance.

Mr. Carrier asked if a parking agreement with a neighboring property could be utilized. Mr. Robertson answered in the affirmative as long as the neighboring property can accommodate the additional parking that is above the required parking for the business on the property.

Mr. Duke expressed concern that if successful, there would be traffic issues for ingress/egress of the property.

▶ *Mr. Wolff moved for approval of the variance based on the findings of staff comments, the fact that the state recognizes it as a retail business, and it is an unusual property, with the stipulation that the second floor not be used for public use or any other uses other than office, storage or equipment. Mr. Cowden seconded the motion. Motion passed on a 6 to 1 vote with Mr. Wolff, Mr. Rubin, Mr. Cowden, Mr. Belton, Mr. Duke and Mr. Wood in favor; Mr. Carrier opposed.*

B. S-1-18, 440 Coleman Boulevard, TMS 517-07-00-024, Request for Special Exception in accordance with the strict standards of §§156.411(A)(3) (a)-(d); 156.113-156.120; 156.323; 156.200-156.201 to allow 120-foot tall, stealthstyle wireless telecommunications facility for T-mobile and four (4) other telecommunications providers.

▶ Mr. Yates stated that due to some underlying issues, they would like to request a deferral.

▶ *Mr. Wolff moved for deferral to the next meeting. Mr. Wood seconded the motion. All in favor.*

C. V-5-18, Bridgeside Boulevard, TMS 517-00-00-245, 126, and 018, Appeal from the strict application of Bridgeside II PD-MU-SU Second Amendment (August 27, 2015) to allow a five (5) foot reduction to the critical line buffer in certain areas.

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. William O'Neal, SWA, reviewed the request with the Board.

Mr. Carrier asked for clarification on the sequence of events. Mr. O'Neal answered that the critical line is valid for five years. He stated that because of the subdivision, the critical line had to be revalidated. Since the previous survey, the critical line moved. He stated that based on the approved plans, there would not be sufficient room for the building and a portion of the new critical line setback and showed this on the plans for the Board.

Mr. Duke asked if the applicant initiated the subdivision. Mr. Troy Miller, representative for the property owner, stated that the subdivision was needed for the property to be developed.

Mr. Wolff asked if the applicant is the owner of the property and subdividing the property. Mr. Miller answered in the affirmative. Mr. Wolff asked if the hardship is created because of the subdivision. Mr. James Wilson, attorney, answered that they did not anticipate that the critical line would have changed. Mr. Wolff suggested that this was a self-inflicted hardship.

There being no comments, Mr. Belton closed public comment.

Mr. Belton suggested that there is a hardship and is impacting a small area as outlined by the applicant.

Mr. Duke suggested that this is a sophisticated developer and that the developer would know that this could be a possibility. He asked for clarification on self-inflicted hardships.

Mr. Belton suggested that this is not a clear self-created hardship as the critical line is determined by nature.

Mr. Carrier asked where the project is in construction. Mr. Miller answered that approximately 1/3 of the main infrastructure has been completed with approximately 50% of the construction costs. Mr. Carrier asked if this would affect the parking deck. Mr. Miller answered in the affirmative and stated that if the parking garage must be shifted would mean significant re-engineering.

Mr. Wolff stated that the reason for the critical line buffer is to have space between construction and "mother nature". He suggested that this is "pushing the envelope too far".

Mr. Carrier asked if Mr. Wolff is stating that the application meets the critiera. Mr. Wolff answered that he feels this is a self-inflicted hardship. He suggested that the construction is too close to the critical line area.

Mr. Belton stated that he understands that the property owner should be aware of the requirements when the property is purchased. He suggested that based on the size of the project and nature of the project, the design was based on the original critical line determination. He stated that at this stage of construction, it is difficult to change the plans.

Mr. Wilson asked if he could respond to Mr. Wolff's comment. Ms. Lynes noted that the public hearing has been closed and the applicant would only be able to respond to a question.

Mr. Belton asked the applicant to address Mr. Wolff's concern. Mr. Wilson answered that the topography at the area of concern is such that there is a reasonably steep incline from the marsh area and the engineers do not anticipate any further changes of the critical line.

Mr. Wolff asked if it is anticipated that the property would change in the future. Mr. O'Neal answered that there is a grade change of ten feet of fall for this property with the elevation moving from eight feet to eighteen feet. Mr. Wilson stated that because of the grade change at this location, no additional changes to the critical line are anticipated. Mr. Wolff asked what is anticipated if the critical line does change. Mr. Wilson answered that because of the topography, there is no further anticipated change. Mr. O'Neal answered that if there is further change, it would not only impact this site, but would be an issue for other properties because of the elevation of the property. Mr. Wolff asked how this would be treated in the future if the critical line changes again. Mr. O'Neal answered that the banks would be stabilized around the shoreline and landscaping would be installed to help fortify and stabilize the soil.

Mr. Carrier asked when the five-year critical line expired. Mr. Miller answered that it was late in 2017 after the permits were issued. Mr. Carrier asked what

must transpire to keep the critical line. Mr. Miller answered that if the subdivision occurred prior to the expiration date, then no changes to the critical line would have been necessary as the critical line would have still been valid. He stated that typically subdivision does not occur until after the infrastructure is in place.

▶ *Mr. Wolff moved for denial of the variance based on the findings in the staff report and that there is a self-inflicted hardship. Mr. Duke seconded the motion. Motion passed on a 4 to 3 vote with Mr. Wollf, Mr. Cowden, Mr. Duke, and Mr. Wood in favor; Mr. Carrier, Mr. Rubin, and Mr. Belton opposed.*

4. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 7:31 pm.

Submitted by,
L. Lynes
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